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OFFICIAL REPORTS
OF
THE SUPREME COURT

JUNE 24 THROUGH OCTOBER 6, 2019

END OF TERM

CHRISTINE LUCHOK FALLON

REPORTER OF DECISIONS



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OF THE
SUPREME COURT
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*Justice Stevens, who retired effective June 29, 2010 (561 U. S. ix), died on July 16, 2019.

SUPREME COURT OF THE UNITED STATES

ALLOTMENT OF JUSTICES

It is ordered that the following allotment be made of the Chief Justice and Associate Justices of this Court among the circuits, pursuant to Title 28, United States Code, Section 42, and that such allotment be entered of record, effective October 19, 2018, viz.:

For the District of Columbia Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the First Circuit, STEPHEN BREYER, Associate Justice.

For the Second Circuit, RUTH BADER GINSBURG, Associate Justice.

For the Third Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Fourth Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the Fifth Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Sixth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Seventh Circuit, BRETT M. KAVANAUGH, Associate Justice.

For the Eighth Circuit, NEIL M. GORSUCH, Associate Justice.

For the Ninth Circuit, ELENA KAGAN, Associate Justice.

For the Tenth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Eleventh Circuit, CLARENCE THOMAS, Associate Justice.

For the Federal Circuit, JOHN G. ROBERTS, JR., Chief Justice.

October 19, 2018.

(For next previous allotment, see 586 U. S., Pt. 1, p. III.)

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The syllabus in a case constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader. See *United States v. Detroit Timber & Lumber Co.*, 200 U. S. 321, 337 (1906).

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CASES ADJUDGED
IN THE
SUPREME COURT OF THE UNITED STATES
AT
OCTOBER TERM, 2018

Syllabus

DUTRA GROUP *v.* BATTERTONCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 18–266. Argued March 25, 2019—Decided June 24, 2019

Respondent Christopher Batterton was working on a vessel owned by petitioner Dutra Group when a hatch blew open and injured his hand. Batterton sued Dutra, asserting a variety of claims, including unseaworthiness, and seeking general and punitive damages. Dutra moved to dismiss the claim for punitive damages, arguing that they are not available on claims for unseaworthiness. The District Court denied Dutra’s motion, and the Ninth Circuit affirmed.

Held: A plaintiff may not recover punitive damages on a claim of unseaworthiness. Pp. 369–377.

(a) This case is governed by *Miles v. Apex Marine Corp.*, 498 U. S. 19, and *Atlantic Sounding Co. v. Townsend*, 557 U. S. 404. *Miles* establishes that the Court “should look primarily to . . . legislative enactments for policy guidance” when exercising its inherent common-law authority over maritime and admiralty cases, while recognizing that such statutory remedies may be supplemented to “achieve the uniform vindication” of the policies served by the relevant statutes. 498 U. S., at 27. And in *Atlantic Sounding*, the Court allowed recovery of punitive damages but justified that departure from the statutory remedial scheme based on the established history of awarding punitive damages for certain maritime torts, including maintenance and cure. 557 U. S., at 413–414. P. 369.

(b) The overwhelming historical evidence suggests that punitive damages are not available for unseaworthiness claims. Neither *The Rolf*, 293 F. 269, nor *The Noddleburn*, 28 F. 855—on which Batterton relies—contains a relevant discussion of exemplary or punitive damages. And two other cases to which Batterton points—*The City of Carlisle*, 39 F. 807, and *The Troop*, 118 F. 769—both involve maintenance and cure, not unseaworthiness, claims. The lack of punitive damages in traditional maritime law cases is practically dispositive. Pp. 370–372.

(c) This Court cannot sanction a novel remedy here unless it is required to maintain uniformity with Congress’s clearly expressed policies, particularly those in the Merchant Marine Act of 1920 (Jones Act)—which codified the rights of injured mariners by incorporating the rights provided to railway workers under the Federal Employers’ Liability